CONTRACT OF LEASE

KNOWN ALL MEN BY THESE PRESENTS:

This Contract of Lease entered into this **10th of September 2026** at **San. Fernando Pampanga, Philippines,** by and between

KHYLE CHRISTIAN JAMES, of legal age, Filipino, with address at **# 221 Mabini St., Davsan Subd., Sindalan, City of San. Fernando, Pampanga**, hereinafter referred to as the **"LESSOR"**.

-and-

NATHANIA M. MONTAÑEZ, of legal age, Filipino, hereinafter called the "**LESSEE**".

WITNESSETH: that -

The LESSOR represents that he/she has acquired rights and interest over the leased premises through a prior agreement and has the legal right and authority to lease the same. The LESSOR further agrees to provide proof of such rights and authority upon reasonable request by the LESSEE. The leased premises are located at the following address and described as follows:

A residential house located at **BLOCK 83, LOT 20, BRIDGEPOINTE, DEL ROSARIO, CITY OF SAN. FERNANDO, PAMPANGA**, with a total floor area of 40 square meters (more or less), with **1 toilet and bath**, **SEMI-FURNISHED**, hereinafter referred to as the "**LEASED PREMISES"**.

The LESSEE, who shall be responsible for all his/her acts and omissions, desires to lease the above described premises, and the LESSOR is willing to lease the same unto the LESSEE under the following terms and conditions.

I. TERM

- This agreement shall be for a period of **1 year commencing on September 10, 2026 to September 10, 2027** subject to renewal of the parties on mutually agreed terms. Any renewal/extension hereof shall be subject to separate agreement.

II. RENTAL

- The LESSEE hereby agrees to pay the LESSOR the amount of Six Thousand Five Hundred & 00/100 Only (₱ 6,500.00) Philippine Currency every month for the entire term of this contract. Rent shall be due on or before the **5th day of each month**, payable at the LESSOR's designated address or through such mode as the LESSOR may specify.

III. SECURITY DEPOSIT

- Upon execution of this Contract, the LESSEE shall pay to the LESSOR the equivalent of one (1) month advance rent and one (1) month security deposit + Utilities, in the total amount of P 15,000 Philippine Currency.

  The one (1) month advance rent shall be applied to the first month of the lease term.

  The security deposit shall answer for any unpaid rent, utility bills, and damages to the leased premises beyond normal wear and tear incurred during the term of the lease. The security deposit shall not be applied to monthly rental payments.

  The security deposit shall be refunded to the LESSEE within thirty (30) days from the date the LESSEE vacates the premises and surrenders possession thereof to the LESSOR, subject to deductions for any unpaid obligations.

  In the event that the LESSEE pre-terminates or abandons this Agreement prior to its expiration, the LESSOR shall have the right to forfeit the security deposit, without prejudice to other remedies available under the law.

  The security deposit may also serve as a reservation fee prior to the actual contract date. In case the LESSEE decides not to proceed with the lease before the contract date, the security deposit shall be forfeited in favor of the LESSOR.

IV. NOTICE OF DISENGAGEMENT

- The LESSEE shall give the LESSOR at least thirty (30) days written notice before vacating the leased premises. Rent and utilities must be paid during this period. Failure to provide timely notice may result in forfeiture of the security deposit. The premises must be returned in good condition, with all keys and access devices

surrendered to the LESSOR.

V. RENEWAL

- The LESSEE may renew this lease upon expiration, subject to the LESSOR's written approval. Renewal terms, including rent and duration, shall be mutually agreed upon in writing at least thirty (30) days before the lease's expiration. All other provisions of this agreement shall continue to apply during the renewal period unless otherwise amended in writing.

VI. TERMINATION OR CANCELLATION OF LEASE

- This lease shall be automatically terminated if any of the following events supervene:
    1. Upon expiration of the lease period in the original contract, unless the lease relationship is extended or renewed in the manner provided in this contract;
    2. Failure to comply with any of the Conditions of this Contract;
    3. Use of the premises for purposes other than what is agreed upon;
    4. Failure to comply with any provision of the House Rules and Regulations, as well as with any policies that may be issued out periodically by the LESSOR.

VII. UTILITIES

- The LESSEE shall pay all utilities and related services, including electricity, water, homeowners' association (HOA) dues, Wi-Fi/internet, and other services for the leased premises. The LESSEE shall remit payment to the LESSOR for the corresponding utility bills and applicable charges at least five (5) days prior to the due date of such bills, upon receipt of the Statement of Account.

  The LESSOR shall issue an acknowledgment or receipt for all payments made, and the LESSEE may request proof of payment of such utilities from the LESSOR.

  If the LESSEE fails to remit payment within the required period, including cases of dishonored or returned checks, the LESSEE agrees to pay a penalty of three percent (3%) interest per month, in addition to any other applicable charges.

VIII. USE OF PREMISES

- The LESSEE hereby expressly agrees and warrants that the leased premises shall be occupied and used exclusively by the LESSEE for Residential purposes and for no other purpose without prior written consent of the LESSOR.

  LESSEE shall not use the premises for any immoral or illegal activities nor divert/convert the premises to other uses. The leased units shall not be used for

any activities prohibited by law. Neither shall the unit be used in any activities that may disturb the peace or cause disturbances of whatever nature to other tenants.

Any violation of the foregoing restrictions shall result to the termination of this lease and removal of the tenant from the premises.

IX. RULES, REGULATIONS, ETC.

- The LESSEE shall not use or store in any part of the leased premises anything prohibited by law, whether local or national, without prejudice to the criminal liability of the LESSEE therefore under the Revised Penal Code and other special laws. The LESSEE shall comply strictly with any and all rules and safety regulations which may be imposed from time to time by the LESSOR and with all the laws made by duly constituted authorities of the City or National Government arising from or regarding the use, occupancy and sanitation of the leased premises.

X. VIOLATIONS

- Any violation, direct or indirect, of any of the provisions herein stipulated shall be sufficient ground for termination of this Contract. The LESSEE moreover agrees to forfeit the one (1) month security deposit as penalty for such violations.

XI. PROHIBITIONS

- The LESSEE shall not bring into or store within the leased premises any flammable, explosive, or hazardous materials, including those subject to spontaneous combustion, nor conduct any activity that may increase the risk of fire or damage to the property.

  The LESSEE shall be liable for any damage caused by such prohibited materials or activities. Any increase in insurance premiums or related costs resulting from the LESSEE's actions shall be for the account of the LESSEE.

XII. DEFAULT AND BREACH OF COVENANTS, ABANDONMENT OF THE LEASED PREMISES

- The leased Premises shall conclusively be considered to have been abandoned upon the occurrence of any of the following events. And one (1) month security deposit shall be forfeited in favor of the LESSOR.
  1. The leased premises is vacated, deserted or abandoned continuously for a period of at least thirty (30) days, without prior notice to the LESSOR, before the expiration or termination of the Lease;
  2. LESSEE is in arrear of three (3) months rental, or three (3) month utility and/or other billings.

XIII. NOTICES

- The LESSOR can notify the LESSEE by email or by posting a notice at the property. Once done, the notice is considered officially received, even if the LESSEE doesn't accept it or isn't home.

XIV. DAMAGE TO THE LEASED PREMISES

- In case of damage to the leased premises or its appurtenances by fire, earthquake, war, or any other unforeseen cause, the LESSEE shall give immediate notice thereof to the LESSOR. If the leased premises shall be damaged by fire or other unforeseen cause without the fault or negligence of the LESSEE or his agents, employees, or visitors, the damage shall be repaired at the expense of the LESSOR within a reasonable time after such notice; however, if the house leased premises is destroyed to such an extent as to make it untenable without the fault or neglect of the LESSEE, either party may demand the rescission of this contract.

  The LESSOR shall not be liable to the LESSEE for any damage which such destruction may cause to the LESSEE, and no compensation or claims shall be allowed against the LESSOR by reason of any inconvenience, annoyance, or injury to the LESSEE arising out of the necessity of repairing any portion of the house, whenever the necessity may arise.

  In case of damage to the leased premises or its appurtenances by fire or any unforeseen cause which was caused by the LESSEE's negligence or fault, or by his agents, employees, or visitors, then the damage shall be repaired at the expense of the LESSEE, and the leased premises shall be brought back to its original condition.

XV. LIABILITY FOR SUITS, ETC.

- The LESSEE agrees to indemnify and hold the LESSOR harmless from any claims, damages, or liabilities arising from the LESSEE's use of the leased premises. This does not affect the LESSOR's right to terminate the lease according to the terms of this contract.

XVI. SUBLEASE AND TRANSFER OF RIGHTS

- The LESSEE shall not assign, transfer, mortgage, or sublease the leased premises, in whole or in part, without the prior written consent of the LESSOR. Any unauthorized assignment or sublease shall be null and void, and the LESSOR may terminate this contract immediately. In such cases, all rental and security deposits shall be forfeited. The LESSOR has the right to prevent any unauthorized person from entering the premises.

XVII. IMPROVEMENTS, REPAIRS AND MAINTENANCE

- The LESSEE acknowledges that the leased premises are in good and tenantable condition and agrees to keep them clean, safe, and free from nuisances. Waste

and garbage must be properly contained and disposed of as instructed by the LESSOR.

The LESSEE must promptly notify the LESSOR of any damage, unauthorized use, or threats to the premises. The LESSOR may conduct necessary repairs for maintenance or preservation, and shall not be liable for any inconvenience caused during such work. Major repairs due to structural defects are for the LESSOR's account, while damages caused by the LESSEE's negligence are at the LESSEE's expense.

The LESSEE shall not make alterations, improvements, or install additional locksets, deadlocks, or nails on walls, doors, or other parts of the premises without the prior written consent of the LESSOR.

Upon lease expiration, the LESSEE shall return the premises in the same condition as received, reasonable wear and tear excepted.

XVIII. ACCESS TO PREMISES

- The LESSOR or its authorized agent shall have the right to enter the leased premises at reasonable times with prior notice, except in emergencies to examine the same, to make repairs, or for any purpose which it may deem necessary for the operation or maintenance of the house, and to exhibit the leased premises to prospective tenants.

  No compensation or claim shall be made against the LESSOR by reason of any inconvenience, annoyance, or injury to the LESSEE that may arise by virtue of undertaking any work or activity under this provision.

XIX. RETURN OF PREMISES

- Upon the expiration or termination of this lease, the LESSEE agrees to promptly vacate and surrender the leased premises to the LESSOR in good condition, reasonable wear and tear excepted. The premises must be free of all occupants, furniture, belongings, and personal effects, without any delay.

XX. DISTURBANCE

- Disturbance or discontinuance of the possession of the leased premises by the LESSEE due to causes beyond the control of LESSOR shall confer no right of any kind to the LESSEE as against the LESSOR.

XXI. NON-WAIVER

- The failure of the LESSOR to insist upon LESSEE a strict performance of any of the conditions herein shall not be deemed as relinquishment or waiver of any right or remedy that said LESSOR may have, nor shall it be construed as a waiver of any subsequent breach or default of the conditions herein, which

conditions shall continue to be in full force and effect, unless such waiver shall have been expressed in writing and signed by the LESSOR.

XXII. RIGHT TO TAKE OVER POSSESSION

- Upon failure of the LESSEE to comply with the terms and conditions of the lease, the LESSOR shall have the right, upon FIVE (5) days written notice to the LESSEE, or in his absence, upon written notice posted at the entrance of the premises leased, to enter and take possession of the premises.

XXIII. JUDICIAL RELIEF OR PENALTY

- Should the LESSOR be compelled to seek judicial relief against the LESSEE, the latter shall, in addition to any other damages that may be awarded to the LESSOR, pay an amount equivalent to 25% of the amount claimed in the complaint, and by way of attorney's fees (with a minimum of P10,000.00) aside from the costs of litigation and other expenses which the laws may entitle the LESSOR to recover from the LESSEE.

XXIV. FORCE MAJEURE

- The LESSOR shall not be liable for any injuries or damage caused by any circumstance of force majeure. Force majeure is any event beyond the reasonable control of either party including, but not limited to war, whether declared or not, rebellion, fire, flooding, and other natural calamities.

XXV. SEPARABILITY CLAUSE

- In the event that any paragraph, subparagraph or part of this contract of lease shall be declared contrary to law or public policy, or is otherwise declared invalid, such paragraph, subparagraph or part shall not affect the validity of the remaining provisions or stipulations hereof.

XXVI. VENUE

- Any action arising out of or in connection with this Contract shall be brought before the appropriate court within the jurisdiction of the City of San. Fernando, to the exclusion of all other courts.

XXVII. OTHER PROVISIONS

- All remedies granted to the LESSOR under this Contract or elsewhere shall be cumulative.

IN WITNESS WHEREOF, the parties hereto have signed these presents on the date and place first above written.

KHYLE CHRSTIAN G. JAMES	NATHANIA M. MONTAÑEZ
LESSOR	**LESSEE**

ACKNOWLEDGEMENT

REPUBLIC OF THE PHILIPPINES
CITY OF SAN. FERNANDO) SS.

BEFORE ME, a Notary Public for and in the City of SAN. FERNANDO, Philippines this 7th day of April, 2026 personally appeared the following:

NAME	VALID I.D NO.	ISSUED ON	ISSUED AT
KHYLE CHRISTIAN JAMES	P7792836A	JULY 4, 2018	DFA PAMPANGA
NATHANIA M. MONTAÑEZ			

Known to me and to me known to be the same persons who executed the foregoing instrument and they acknowledged to me that the same is their free and deed and that of the corporation represented.

The foregoing refers to a Contract of Lease, consisting of seven (7) pages including this page to which this acknowledgement is written.

WITNESS MY HAND AND SEAL on the date and place first above written.

Doc. No. _____
Page No. _____
Book No. _____
Series of _____